

CHAPTER 48.

An Act to provide for the payment of contributions towards the costs of benefits under the scheme framed and approved in terms of the Education (Scotland) (Superannuation) Act, 1919, and for matters incidental thereto, and for the payment from the Consolidated Fund of deferred annuities in respect of contributions under the Elementary School Teachers (Superannuation) Act, 1898. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As from the first day of June, nineteen hundred and twenty-two, and until the first day of June, nineteen hundred and twenty-four, there shall be paid to the Scottish Education Department (in this Act referred to as “the Department”) by or in respect of every teacher to whom the Teachers’ Superannuation Scheme framed and approved under the Education (Scotland) (Superannuation) Act, 1919, or any amendment thereof (hereinafter in this Act referred to as “the scheme”) applies and who was on the first day of June, nineteen hundred and twenty-two, or is at any time thereafter employed in service within the meaning of the scheme, by way of contribution towards the cost of providing benefits under the scheme, an amount equal to five per centum of his salary as calculated in accordance with the Teachers Superannuation Rules (Scotland), 1919, or any amendment thereof, or, in the case of a teacher who is, by reason of sickness, receiving less than full salary, the amount which he is actually receiving by way of salary for the time being, provided that the contribution shall not exceed the amount, if any, by which the salary of the teacher exceeds four-fifths of the full salary to which he would be entitled in terms of the minimum national scales.

Contributions towards benefits under Superannuation Scheme.

9 & 10 Geo. 5. c. 17.

(2) The payments due in terms of the foregoing subsection shall be collected by the Department from each education authority, governing body, or other body of managers either directly or by deduction from any grants that may accrue under any regulations, code, or minute of the department, and in consideration of such collection it shall be lawful for each education authority, governing body, or other body of managers to deduct five per centum from the salary of every teacher to whom the scheme applies :

Provided that, in the case of any teacher in respect of whose salary no contribution has been so collected, any sum due under the immediately preceding subsection shall be recoverable by the Department from the teacher, either directly or by deduction from any sum payable to him or to his legal personal representatives under the scheme.

.Amending
scheme to be
framed.

2. As soon as may be after the passing of this Act, the Department shall frame and lay before each House of Parliament, with a view to approval by Order in Council, an amending scheme which shall provide for the return to individual teachers, in such cases and on such conditions as may be prescribed therein, of any sums that may have been or may be deducted from their salaries in terms of the first section of this Act, and for the making of any rules that may be required for the purpose of giving effect to the provisions of this Act, and which may also, if so prescribed, provide for the payment in each year of a contribution towards the cost of the scheme by education authorities, governing bodies, or other bodies of managers, such contribution to be a prescribed proportion (not exceeding two per centum) of the salaries of all teachers to whom the scheme applies who are in the employment of the particular education authority, governing body, or other body of managers by whom the contribution is paid. The provisions of section eight of the Education (Scotland) (Superannuation) Act, 1919 (which relates to approval and effect of scheme), shall apply to any amending scheme framed in pursuance of this section.

Sums to be
paid into the
Exchequer.

3. After deduction of any contributions that may be returned in terms of any amending scheme framed and approved in pursuance of the immediately preceding section, all sums collected or recovered by the Department in terms of the first section of this Act shall, except

in so far as they are authorised to be applied as an appropriation in aid of the moneys provided by Parliament for Public Education in Scotland, be paid into the Exchequer.

4. Notwithstanding anything in subsection (1) of section twenty of the School Teachers (Superannuation) Act, 1918, subsection (2) of section twelve of that Act shall apply and be deemed always to have applied to Scotland, and any deferred annuities payable on or after the first day of April, nineteen hundred and twenty-three, in respect of Scottish contributions shall be charged on the Consolidated Fund and the growing produce thereof, and shall be paid by the National Debt Commissioners in such manner as the Treasury direct.

Payment by
National
Debt Com-
missioners.
8 & 9 Geo. 5.
c. 55.

5.—(1) This Act shall extend to Scotland only.

(2) This Act may be cited as the Education (Scotland) (Superannuation) Act, 1922, and the Education (Scotland) Acts, 1872 to 1919, and this Act may be cited as the Education (Scotland) Acts, 1872 to 1922, and shall, so far as is consistent with the tenor thereof, be construed together as one Act.

Extent,
citation, and
construction.

CHAPTER 49.

An Act to amend the Law with respect to the Remuneration of Railway Companies for the conveyance of Parcels. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Post Office (Parcels) Act, 1882, shall have effect as if in paragraph (2) of section two thereof (which fixes the amount of railway remuneration)—

Remunera-
tion to
railway
companies
for carriage
of parcels.
45 & 46 Vict.
c. 74.

(a) “two-fifths of the gross receipts” were substituted for “eleven-twentieth parts of the gross receipts” wherever that expression occurs; and

(b) a reference to the weights of or rates of postage for parcels mentioned in the Schedule to this Act were substituted for the reference to those mentioned in the Second Schedule to that Act; and